

TEXAS LEGAL & REGULATORY

Texas Data Privacy & Security Act (TDPSA) Readiness Guide

What the TDPSA (in force since 2024) means for Texas small businesses and for BVTech as a processor - applicability, consumer rights, and the small-business sensitive-data rule.

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Applicability

The TDPSA applies to persons conducting business in Texas that process or sell personal data, with a notable carve-out: small businesses (as defined by the U.S. SBA) are largely exempt - EXCEPT that they may not sell sensitive personal data without consumer consent. Most BVTech clients are exempt small businesses; the duties below still represent best practice and apply fully once a client outgrows the exemption.

Core Duties (non-exempt controllers)

- Post a privacy notice covering categories processed, purposes, sharing, and consumer rights.
- Honor consumer rights: access, correction, deletion, portability, and opt-out of sale, targeted advertising, and profiling.
- Obtain consent before processing sensitive data (health, biometrics, precise geolocation, children's data).
- Bind processors (like BVTech) by contract - our DPA (BVT-LGL-011) satisfies the processor-contract requirement.
- Respond to verified consumer requests within 45 days (one 45-day extension permitted).
- Enforcement is by the Texas Attorney General with a 30-day cure period; there is no private right of action.

BVTech's Role

As processor, BVTech processes client-entrusted personal data only on documented instructions, maintains the safeguards in this library, assists with consumer-rights responses where systems permit, and flows the same duties to subprocessors.